



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 17 judgments on Tuesday 27 June 2017 and 17 judgments and / or decisions on Thursday 29 June 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 27 June 2017

[Ramljak v. Croatia \(application no. 5856/13\)](#)

The applicant, Milica Ramljak, is a Croatian national who was born in 1962 and lives in Sinj (Croatia). She claims that, in the course of legal proceedings concerning a will, the tribunal considering her case had not been impartial. The proceedings in question consisted of an appeal before a three-judge panel of the Civil Division of the Split County Court. The judge presiding over the panel was the father of a trainee lawyer, who was employed by the law firm representing the party opposing Ms Ramljak in the proceedings. The judges found against Ms Ramljak, and her further appeals to both the Supreme Court and the Constitutional Court were both rejected. Relying on Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights, Ms Ramljak complains that her case was not considered by an independent and impartial tribunal, due to the existence of close family ties between the judge ruling on her case and an employee of the law office representing her opponent.

[Jankauskas v. Lithuania \(no. 2\) \(no. 50446/09\)](#)

The applicant, Ramūnas Jankauskas, is a Lithuanian national who was born in 1972 and lives in Pakruojis (Lithuania). He complains about being struck off the list of trainee advocates on the grounds of having an insufficiently high moral character. Mr Jankauskas had previously been a pre-trial investigator, but he was convicted of abuse of that office and soliciting bribes. After he had served his sentence and his conviction had expired, he made a successful application to the Lithuanian Bar Association to be admitted as a trainee advocate. However, he did not declare his previous conviction. After information about the conviction later came to light, Mr Jankauskas was struck off the trainee advocates' list by a decision of the Court of Honour of Advocates. This was on the grounds that he had withheld information relevant to the assessment of his reputation, demonstrating that he did not have a sufficiently high moral character. Mr Jankauskas challenged the decision in the domestic courts but he was unsuccessful.

Relying in essence on Article 8 (right to respect for private and family life) of the Convention, Mr Jankauskas complains that his removal from the list of trainee advocates had been unlawful, discriminatory and disproportionate. He also claims that the examination of his disciplinary case by the Court of Honour was unfair.

[Lekavičienė v. Lithuania \(no. 48427/09\)](#)

The applicant, Vladislava Ramunė Lekavičienė, is a Lithuanian national who was born in 1942 and lives in Vilnius (Lithuania). She was admitted to the Bar as an advocate, but later removed her name from the list of practicing advocates because of a pending criminal case against her for forgery and fraud. She was convicted in August 2004 and her conviction expired in August 2007, shortly after which time she requested readmission to the Bar. Citing the short period of time that had elapsed

and the nature of the crimes committed, the Bar Association refused her request on the grounds that she did not possess the requisite high moral character. The refusal was appealed through the court system and was ultimately upheld by the Supreme Court. Relying on Article 8 (right to respect for private and family life), Ms Lekavičienė complains that the prohibition on her practicing law as an advocate, even though she had the sufficient qualifications and professional experience, had affected her enjoyment of the right to respect for her private life.

[Sturm v. Luxembourg \(no. 55291/15\)](#)

The applicant, Robert Sturm, is a Luxembourg national who was born in 1963 and lives in Canach (Luxembourg). The case concerns the dismissal of Mr Sturm's appeal on points of law on the grounds that he had not expressed his arguments in accordance with the relevant legal requirements.

Mr Sturm was made subject to compulsory retirement in March 2012. He applied for a pension with immediate effect, but his application was rejected by his employer on the grounds that payment of the pension had been deferred to the age of 65.

Mr Sturm lodged an appeal with the Luxembourg Labour Court against his employer, relying on a Grand-Ducal Regulation which, he submitted, imposed a length of service of 15 years as the sole condition for awarding the pension. The court dismissed that appeal in March 2013, which decision was upheld on appeal in March 2014. Mr Sturm lodged an appeal on points of law, which was, however, dismissed in May 2015 on the grounds that the fourteen grounds of appeal which he had set out had not met the requirements of the Law on cassation proceedings.

Relying on Article 6 (right to a fair trial/right of access to a tribunal), Mr Sturm complains about the dismissal of his appeal on points of law.

[Chiper v. Romania \(no. 22036/10\)](#)

The applicant, Mihai Chiper, is a Romanian national who was born in 1973 and lives in Bucharest. The case concerns his conviction on appeal grounded on witness statements which had been deemed insufficient for a conviction at first instance.

In 2006 Mr Chiper, a police officer, was instructed to implement a series of administrative investigative measures in the framework of proceedings in which four individuals, who were held in investigation detention, had been jointly charged. Three of those individuals had lodged a criminal complaint against Mr Chiper. They alleged that he had requested payment of sums of money in exchange, firstly, for leave to receive visits and parcels, and secondly, for his intervention in their favour with the judges of the Bucharest Court of Appeal. The prosecution ordered the commencement of criminal proceedings against Mr Chiper on charges of active corruption and influence peddling.

By judgment of 19 December 2008 the Court of Appeal acquitted Mr Chiper of all charges. The court held that neither the content of the criminal complaints nor any of the complainants' submissions had proved his guilt. The prosecution appealed to the High Court of Cassation and Justice.

By final judgment delivered on 12 November 2009, the High Court acceded to the prosecution appeal, quashed the judgment delivered at first instance, altered the legal classification of the offence with which Mr Chiper was charged to passive corruption and influence peddling committed by a civil servant in the exercise of his supervisory duties, and gave him a three-year affirmative prison sentence. Mr Chiper served his sentence from 13 November 2009 to 6 June 2011, when he was released on parole.

Relying on Article 6 § 1 (right to a fair trial), Mr Chiper complains that he was convicted by the High Court of Cassation and Justice without any direct taking of evidence, particularly as regards witness statements, despite having been acquitted by the Court of Appeal on the basis of the same evidence.

Ghiulfer Predescu v. Romania (no. 29751/09)

The applicant, Ghiulfer Predescu, is a Romanian national who was born in 1956 and lives in Constanța (Romania). She complains of a violation of her right to freedom of expression connected with her work as a journalist. In August 2006 Ms Predescu appeared on a television show together with the Mayor of Mamaia, to discuss some recent violence in the town. During the broadcast, Ms Predescu made allegations that the Mayor was personally connected to a feud between violent rival clans operating in the area. The Mayor brought proceedings against her for defamation, claiming that the allegations had damaged his image as a public person and a locally elected official. The Mayor's claim was ultimately successful in the appeal courts. Ms Predescu was ordered to pay 50,000 Romanian lei in damages, plus costs, and to publish the judgment against her in two newspapers.

Ms Predescu complains that these obligations violated her rights under Article 10 (freedom of expression). In particular, she claims that the interference with her right to freedom of expression did not have a legitimate aim and was not necessary in a democratic society.

Valdhuter v. Romania (no. 70792/10)

The applicant, Ioan Florinel Valdhuter, is a Romanian national who was born in 1962 and lives in Baia Mare (Romania). The case concerns his allegation that he was not allowed to question a witness whose statement had been taken into account in order to convict him.

In February 2000 Mr Valdhuter, who bought and sold second-hand car parts, was summoned by the police to make a statement on the subject of the purchase of three cars from a certain I.R. He was prosecuted for complicity in theft and accused of having knowingly purchased stolen cars. During the prosecution, I.R. was questioned by the authorities and admitted to having stolen cars further to "orders" from specific persons, one of them being Mr Valdhuter. Neither Mr Valdhuter nor his lawyer had attended I.R.'s interrogations.

In June 2000 the prosecution ordered I.R.'s committal on a charge of theft, and Mr Valdhuter's committal on a charge of complicity in theft. In April 2004 the court decided to disjoin the part of the case concerning I.R. from that concerning Mr Valdhuter. In April 2007 Mr Valdhuter was given a three-year affirmative prison sentence. He appealed against that judgment on the grounds that the court had based his conviction on I.R.'s statements during the investigation, whereas the latter had gone back on his initial statement during the criminal proceedings conducted after the disjoinder of the cases. In June 2009 the county court partly set aside the judgment of the court of first instance and ordered a stay of execution of the sentence. Mr Valdhuter lodged an appeal with the Court of Appeal, which dismissed it. The Court of Appeal did not adjudicate on the lawfulness of I.R.'s statements.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to examine witnesses), the applicant complains that his right to a fair trial was not respected because he had been unable to question witness I.R. even though the latter's statements had been taken into account for his conviction.

Bigashev v. Russia (no. 71444/13)

The applicant, Rifkat Bigashev, is a retired Russian national who was born in 1927 and lives in Izhevsk, in the Republic of Udmurtiya (Russia). Mr Bigashev complains that works carried out on a public road near his house repeatedly caused his property to flood – and that the local authorities disobeyed a court order to conduct repair works which would prevent further damage.

The road works were carried out between 2000 and 2002. Since that time, Mr Bigashev's property has been submerged by melted snow and groundwater every year. Mr Bigashev repeatedly brought proceedings against the municipal authority and a municipal company which had carried out the works, seeking damages and an order to compel them to repair the road. However, despite three

judgments in his favour, the road was not repaired until October 2014. Mr Bigashev applied to be provided with social housing and he claims that his property is no longer habitable.

Relying on Article 6 § 1 (right to a fair hearing) and Article 1 of Protocol No. 1 (protection of property), Mr Bigashev complains that a judgment of January 2013 ordering a repair of the road was not enforced fully or in a timely manner, and that this failure violated his right to the peaceful enjoyment of his home. He also complains of a violation of Article 8 (right to respect for private and family life and the home), arising from the authorities' failure to protect his home from flooding.

[Krndija and Others v. Serbia \(nos. 30723/09, 9370/13, 32658/12, and 2632/09\)](#)

The applicants, Neđo Krndija, Enita Mavrić, Predrag Vukosavljević, and Bora Jovanović, are Serbian nationals who were born in 1948, 1967, 1963, and 1951 respectively and live in Barič, Novi Pazar, Ralja, and Leskovac (Serbia). All four applicants were dismissed by their respective employers and subsequently brought civil claims against them, seeking reinstatement and/or pecuniary damages. All of them obtained final court decisions in their favour. However, none of these decisions have ever been enforced. The applicants complain that the national authorities failed to enforce final court decisions in their favour and that they had no effective domestic remedy for this. They rely on Article 6 § 1 (right to a fair hearing), Article 13 (right to an effective remedy), and Article 1 of Protocol No.1 (protection of property).

[Revision](#)

[Tanışma v. Turkey \(no. 32219/05\)](#)

The applicants, Zekeriya Tanışma, Ekrem Tanışma, Necdet Tanışma and Zekiye Tanışma, are Turkish nationals who were born in 1957, 1978, 1980 and 1961 respectively and live in Ankara.

The case concerned the death of the applicants' son and brother while on compulsory military service.

Relying on Article 2 (right to life), the applicants complained about a violation of their relative's right to life. Relying on Article 6 § 1 (right to a fair trial), they complained about the lack of independence and impartiality of the judges of the High Court, owing to its composition.

By judgment of 17 November 2015, the Court ruled that there had been no violation of Article 2, and that there had been a violation of Article 6 § 1 given that the High Court which had adjudicated on the applicants' complaint could not be deemed to have been independent and impartial. The Court had decided to award the applicants EUR 6,000 jointly in respect of non-pecuniary damage, as well as EUR 1,000 in respect of costs and expenses.

On 18 November 2016 the applicants' representative informed the Court that he had learnt that Necdet Tanışma had died on 3 February 2011, and requested a consequent revision of the judgment.

[Lazarenko and Others v. Ukraine \(nos. 70329/12, 9041/13, 9755/13, 15901/13, 27320/13, and 61147/14\)](#)

The applicants, Gayana Lazarenko, Mykola Demsky, Lyudmyla Novytska, Mariya Pivkhlopko, Vyacheslav Kucherenko, and Lyubov Vichkanova, are Ukrainian nationals who were born in 1938, 1956, 1947, 1942, 1950, and 1956 respectively and live in Dnipro and Lozuvativka (Ukraine). They claim that the domestic courts failed to adequately inform them of appeal proceedings, which allegedly made them unfair.

All of the applicants had been involved in litigation with the authorities about the amount of pension that they were entitled to. The first-instance courts ruled in the applicants' favour. However, these judgments were overturned by the Dnipropetrovsk Court of Appeal. Five of the six applicants complain that the authorities failed to properly notify them that their cases were under appeal. These applicants claim that they were therefore unable to participate in the proceedings, in violation

of their rights under Article 6 § 1 (right to a fair hearing). The remaining applicant complains that, though he did receive notification of his appeal, the pension authority had lodged it out of time.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Medvedev v. Russia (no. 5217/06)

Balan and Others v. Slovakia (nos. 51414/11 and 46098/12)

Bajžík and Others v. Slovakia (nos. 46609/13 and 9892/14)

Cirnerová and Others v. Slovakia (no. 4603/11)

Ivan v. Slovakia (no. 57405/15)

Matuschka and Others v. Slovakia (nos. 33076/10 and 14383/11)

Thursday 29 June 2017

[Dimcho Dimov v. Bulgaria \(no. 2\) \(no. 77248/12\)](#)

The applicant, Dimcho Yordanov Dimov, is a Bulgarian national who was born in 1968 and is currently detained in Vratsa Prison (Bulgaria). Mr Dimov was an inmate at Varna Prison when he was assaulted by another inmate, resulting in a fractured jaw and pain in his right ear near the fracture. Though his assailant was convicted of the assault, the prosecutor refused to open criminal proceedings against the prison staff for failing to protect Mr Dimov. Furthermore, despite numerous requests for an examination by a specialist, his injury went undiagnosed for three months before an X-ray revealed that he had sustained a fracture and that it had not healed properly.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Dimov complains that the prison did not provide him with sufficient protection from his fellow prisoner, even though they knew that he was at risk. He further claims, again relying on Article 3, that he was not given proper medical treatment for his injuries.

[Terrazzoni v. France \(no. 33242/12\)](#)

The applicant, Dominique Terrazzoni, is a French national who was born in 1962 and lives in Toulon. The case concerns the use, in the framework of disciplinary proceedings against the applicant, of a transcription of a telephone conversation which had been tapped accidentally in the context of criminal proceedings in which she had not been involved.

Ms Terrazzoni was appointed judicial officer by decree of 14 December 1988. In July 2000 she took up a position at the Toulon *tribunal d'instance*, and then became a judge at the Toulon *tribunal de grande instance* (TGI) in January 2008.

On 6 September 2008, pursuant to letters rogatory issued by an investigating judge from the Nice TGI in the framework of a criminal investigation concerning violations of drug legislation, a telephone conversation was tapped between Ms Terrazzoni and F.L., an individual known to the police who owned the tapped landline.

Having been informed of the content of that conversation, the Prosecutor with the Aix-en-Provence Court of Appeal alerted the State Prosecutor with the Marseille TGI and the First President of the Aix-en-Provence Court of Appeal. The latter summoned Ms Terrazzoni to appear before him on 29 October 2008. He informed her of the phone-tapping in question, summarised the content of the conversation in question and asked her about the nature of her relations with F.L., the content of their conversation and the proceedings which they had mentioned.

The First President informed the Judicial Services Department of the Ministry of Justice of the applicant's conduct. On 7 November 2008 the Minister for Justice requested the Higher Council of the Judiciary (CSM) to suspend Ms Terrazzoni temporarily from duty. By decision of 18 December 2008 the CSM temporarily suspended Ms Terrazzoni from her duties at the Toulon TGI until a final decision was reached on the disciplinary proceedings. The *Conseil d'Etat* declared inadmissible Ms Terrazzoni's appeal on points of law against that decision.

On 20 February 2009 the Justice Minister referred Ms Terrazzoni's case to the CSM. She submitted grounds of nullity in relation to the administrative disciplinary proceedings, concerning in particular the conduct of the administrative investigation and the admissibility in evidence of the tapped telephone conversations.

On 5 May 2010 the CSM imposed on Ms Terrazzoni the penalty of compulsory retirement. By decree of 30 August 2010 the French President ordered Ms Terrazzoni's removal from office. In February 2011 the Director of Judicial Services dismissed an appeal lodged by the latter. The Council of State declared inadmissible Ms Terrazzoni's appeal on points of law against the CSM's decision.

Relying on Article 8 (right to respect for private life and correspondence), Ms Terrazzoni complains of the tapping and transcription of the impugned telephone conversation, and the use of the corresponding reports in the framework of disciplinary proceedings, without the benefit of the safeguards bound up with her judicial status or the right to challenge the lawfulness of the phone-tapping in question.

[Kosmas and Others v. Greece \(no. 20086/13\)](#)

The applicants are five Greek nationals, George Kosmas, his wife Kyratso Kosma and their three children, who live on the island of Skopelos. The case concerns the privileges enjoyed by monasteries in Greece relating to real estate of which they have been claiming ownership before the courts.

Mr George Kosmas claims to own land in the locality of Glysteri on the island of Skopelos. He had built a tavern at one end of the piece of land, which has been operating for decades. In winter Mr Kosmas and his wife were the only inhabitants of this stretch of coast on the island. The adjacent land belonged to the Holy Monastery of Megisti Lavra (Great Laura) and was uninhabited. The children had two boats to take tourists from the town of Skopelos to the beach and the tavern. The applicants allege that the operational value of their property has been estimated at 2,400,000 euros.

In 2004 the monastery decided to claim ownership of the land in question in the courts. The Volos district court found for the monastery and recognised its ownership of the land at issue. In February 2007 Mr Kosmas appealed to the Larissa Court of Appeal, which noted that the monastery had purchased the land from the true owner by a deed of transfer of ownership certified by the chancellery of Skopelos, and that it had accordingly owned it in good faith since 1824. The Court of Appeal observed that there was nothing in Mr Kosma's predecessors' title deeds dating from 1883, 1902 and 1909, which he had adduced, to show that his predecessors had drawn up any acts of possession relating to the land in question. The court dismissed the appeal.

In January 2011 Mr Kosmas lodged an appeal on points of law, but the Court of Cassation upheld the Court of Appeal's judgment by judgment of 31 May 2012.

The applicants were evicted in October 2013.

Relying on Article 1 of Protocol no. 1 (protection of property) read in conjunction with Article 14 (prohibition of discrimination), the applicants complain, in particular, that the monasteries, including Megisti Lavra, as private property owners, are treated on an equal footing to the State, which they submit has the consequence of debarring private individuals from the right of adverse possession *vis-à-vis* the property in question and encouraging the Greek courts to reject any allegation of abuse of rights by the monasteries. They also complain about procedural obstacles preventing them from

proving that they acquired the land at issue by adverse possession. Finally, they criticise the indefinite non-applicability of statutory limitations of the holy monasteries' claims to real property.

Lorefice v. Italy (no. 63446/13)

The applicant, Giorgio Lorefice, is an Italian national who was born in 1955. He is currently detained in Spoleto Prison (Perugia). He complains that the criminal proceedings brought against him were unfair.

Mr Lorefice was charged with extortion, possession of explosive devices, damage to other people's property, collusion and attempted robbery. These charges were based, among other things, on the statements of two witnesses, who were questioned in the framework of an *ad hoc* hearing before the judge responsible for the preliminary inquiries, in the presence of the parties' representatives.

By judgment of 21 January 2009 the Siacca court discharged Mr Lorefice of all the charges against him. The court also ordered the transmission of the case-file to the prosecution in order to assess whether proceedings should be brought for false testimony against some of the witnesses, including both the aforementioned ones. The prosecution and the civil party appealed.

By judgment of 15 February 2012 the Palermo Court of Appeal found Mr Lorefice guilty of extortion and possession of explosive devices, sentenced him to eight years and six months' imprisonment and fined him 1,600 euros. According to the Court of Appeal, Mr Lorefice had changed his version of events, gradually adjusting his statements as the evidence against him accumulated during the trial.

Mr Lorefice appealed on points of law. In support of his appeal, he alleged in particular that the Court of Appeal had reassessed the credibility of the prosecution witnesses to the disadvantage of the defence, without ordering a fresh hearing of those witnesses. The Court of Cassation dismissed his appeal on points of law.

Relying on Article 6 (right to a fair trial), Mr Lorefice complains about his conviction by the Palermo Court of Appeal, which he considers to have been unfair.

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Abdullayev v. Azerbaijan (no. 7858/09)

Hajili and Others v. Azerbaijan (nos. 44699/13, 47040/13, and 65283/13)

Bošnjak v. Bosnia and Herzegovina (no. 47212/08)

Alam v. Denmark (no. 33809/15)

Khutsidze v. Georgia (no. 5787/08)

Poghosov v. Georgia (no. 33323/08)

Tevzadze v. Georgia (no. 33695/09)

Tortladze v. Georgia (no. 28739/06)

Kapitsyna v. Russia (no. 73627/13)

Romanov v. Russia (no. 56782/08)

Shchepin and Others and Peshkina and Others v. Russia (nos. 13202/08 and 41696/08)

Klimo v. Slovakia (no. 54176/16)

Lebed and Yenyukov v. Ukraine (nos. 65329/12 and 76418/12)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.